

# STATE OF NEW YORK

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6999--A

2025-2026 Regular Sessions

## IN ASSEMBLY

March 18, 2025

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Introduced by M. of A. MAGNARELLI, McDONALD, COLTON, LUNSFORD, DAVILA, ROZIC, McMAHON, WEPRIN -- read once and referred to the Committee on Governmental Operations -- recommitted to the Committee on Governmental Operations in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to certain interagency agreements with the consumer protection division

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subparagraphs 15 and 16 of paragraph (a) of subdivision 3  
2 of section 94-a of the executive law, subparagraph 15 as amended and  
3 subparagraph 16 as added by chapter 374 of the laws of 2022, are amended  
4 and three new subparagraphs 17, 18 and 19 are added to read as follows:

5 (15) create an internet website or webpage pursuant to section three  
6 hundred ninety-c of the general business law, as added by chapter five  
7 hundred nine of the laws of two thousand seven; ~~and~~

8 (16) exercise such powers and duties granted to the secretary by arti-  
9 cle sixteen of the energy law as the secretary may direct, including,  
10 but not limited to: consult with such president of the New York state  
11 energy research and development authority in connection with investi-  
12 gations conducted by such president pursuant to article sixteen of the  
13 energy law; make determinations relating to compliance by products with  
14 the standards adopted pursuant to article sixteen of the energy law;  
15 order the immediate cessation of any distribution, sale or offer for  
16 sale, import, or installation of any product that does not meet such  
17 standards; and impose civil penalties as contemplated by article sixteen  
18 of the energy law~~[-]~~;

19 (17) establish a process by which any state agency or third party,  
20 pursuant to an interagency agreement with the division for the purposes  
21 of fraud prevention, identity verification, and ensuring the integrity

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

LBD10607-06-6

1 or security of individual identities, to grant access to verify New York  
2 resident identities via a secure comparison process against state  
3 systems. Such process shall require, at a minimum, auditable user  
4 consent, no data or images leave state systems, facial images are  
5 converted into a mathematical representation and adequately protected to  
6 facilitate a secure comparison, and any vendor selected shall be  
7 required to annually submit their solution for National Institute of  
8 Standards and Technology (NIST) testing and publication and such vendor  
9 shall have a minimum ISO 30101 Level 2 Conformant Liveness (PAD Level 2)  
10 compliance verified by a NIST approved third party;

11 (18) Any revenue generated as a result of an agreement authorized by  
12 this section shall be made available to the state comptroller for depos-  
13 it in the general fund; and

14 (19) An identity verification service provider may not retain Internet  
15 protocol addresses, geolocation data, or any other information that  
16 describes the location, computer, computer system, or computer network  
17 from which an applicant accesses the system.

18 § 2. This act shall take effect immediately.